



Notification Waiver Determination

Bupa – Barings Australian Private Credit Fund

Acquisition	Bupa HI Pty Ltd (Bupa) applied for a notification waiver in respect of its proposed agreement with Barings Australia Pty Ltd (Barings), under which Bupa will commit capital in exchange for units in Barings Australian Private Credit Fund (BAPCF), as described in the transaction documents provided as part of the application (the Acquisition).
Determination	The Australian Competition and Consumer Commission has determined under section 51ABV(1)(a) of the <i>Competition and Consumer Act 2010</i> (Cth) that the Acquisition is not required to be notified.
Date of determination	26 June 2026

Parties to the Acquisition	The acquirer, Bupa, is a wholly owned subsidiary of Bupa Group, an international healthcare group. In Australia, Bupa Group primarily offers health insurance, provides dental, optical, and clinical care networks, and operates residential aged care homes. The vendor, Barings, acts as both trustee and manager of BAPCF and is an indirect wholly owned subsidiary of Barings LLC, a global alternative asset manager headquartered in North Carolina. The target, BAPCF, is an Australian unit trust and unregistered managed investment scheme which raises and manages capital from wholesale investors and deploys that capital primarily into senior secured loans to privately held middle market companies connected to Australia and New Zealand.
Explanation for determination	In making this notification waiver determination, the Australian Competition and Consumer Commission (the ACCC) has considered the information provided with the notification waiver application, and had regard to the factors in section 51ABV(2)(b) of the <i>Competition and Consumer Act 2010</i> (Cth) (the Act). Based on the information currently before it, the ACCC considers that the Acquisition is unlikely to give rise to any material lessening of competition. In particular: - there is no horizontal overlap between the goods and services supplied by the parties in Australia - the Acquisition will not result in any substantive change in the day-to-day operation or investment decisions of BAPCF. The ACCC has also had regard to the likelihood that, if the Acquisition were put into effect, the notification thresholds determined under section 51ABP(1) of the Act would apply.

	While the ACCC considers that the notification thresholds are likely to be met, given that material competition concerns are unlikely to arise, the ACCC has determined that the Acquisition is not required to be notified. The ACCC considers that the determination is consistent with the object of the Act and the interests of consumers in promoting competition. For more information about the ACCC's approach to considering notification waiver applications and to assessing competition effects more generally, see the ACCC's interim guidance on notification waivers and merger assessment guidelines.
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**Determination made by Commissioner Williams pursuant to a delegation under section 25(1)
of the Act**